

Αθήνα, 29-01-2024

Αριθ. Πρωτ.: 420

ΑΠΟΦΑΣΗ 1/2024

The Hellenic Data Protection Authority convened at the invitation of the President via teleconference on 23-01-2024, in order to examine the case referred to below in the background of this decision. Present were the President of the Authority, Konstantinos Menoudakos, and the regular members Konstantinos Lamprinoudakis, Spyridon Vlachopoulos, Christos Kalloniatis, Aikaterini Iliadou, Grigorios Tsolias, Nikolaos Libos in place of the regular member Charalampos Anthopoulos, who, although duly summoned in writing, did not attend due to an impediment, and the alternate member Maria Psalla, as rapporteur, without voting rights. Also present, without voting rights, were Eleni Marangou, legal expert, Georgia Panagopoulou, and Aikaterini Chatzidiakou, IT experts, as assistants to the rapporteur, and Irini Papageorgopoulou, an employee of the administrative affairs department, as secretary.

The Authority took into account the following:

As part of a broader initiative by the European Data Protection Board (hereinafter, EDPB), the Hellenic Data Protection Authority (hereinafter, the Authority), along with the majority of the EDPB members, jointly undertakes the examination of a matter in a coordinated manner. For 2023, the EDPB decided to prioritize the topic "The definition and position of the Data Protection Officer." To this end, the EDPB developed a unified questionnaire regarding the definition and position of the Data Protection Officer (hereinafter, DPO), which the Authority adopted and sent to selected public entities.

The Authority, as a participating member in this action, has additionally chosen to participate by exercising its investigative powers under Article 58 of the GDPR, in order to verify the definition and position of the DPO in the public sector in light of the statutory obligation for the appointment of a DPO (Articles 37-39 of the GDPR and Articles 6-8 of Law 4624/2019).

The coordinated action group of the Authority, consisting of the experts E. Marangou, G. Panagopoulou, and A. Chatzidiakou, sent the questionnaire to 31 public entities on 03-05-2023. Among them was the Municipality of Athens (hereinafter, the data controller), to which the coordinated action group sent the questionnaire with the reference number G/EXE/1118/03-05-2023, with a submission deadline via the EUsurvey link on 19-05-2023. The data controller did not respond to the aforementioned document. The Authority resent the questionnaire to the data controller with the reference number G/EXE/1344/26-05-2023, in which the data controller was again invited to respond by 31-05-2023. The data controller did not respond despite the phone calls made to the data controller by a member of the coordinated action group. Subsequently, the data controller attempted to complete the aforementioned questionnaire during the period between 12-06-2023 and 20-06-2023 unsuccessfully, as the aforementioned link had been deliberately deactivated by the Authority as part of the audit. Following communication from the data controller to the Authority, the Authority reactivated the aforementioned link with a submission deadline until 21-06-2023 and informed the data controller accordingly. The data controller did not submit the questionnaire again, and since then the link remained deactivated.

Subsequently, after the Authority examined the case file, it sent the reference number G/EXE/3018/28-11-2023 summons to the data controller, in order to discuss the case before the Plenary of the Authority on Tuesday, December 19, 2023. Following the receipt of the summons by the data controller at the Plenary of the Authority, the DPO contacted the Authority by phone and informed that due to an oversight, he did not respond to the Authority's audit by not completing the said questionnaire, while he committed to proceed with the completion and submission of it promptly and in any case before the...

****Examination of the case by the Authority.**** Subsequently, after the Authority had reactivated the above link with the questionnaire, the data controller submitted the questionnaire on 18-12-2023.

In the said meeting, which took place in person, present on behalf of the data controller were Athanasios Karagkounis, lawyer, and A, who performs the duties of DPO of the data controller, in

order to provide clarifications regarding the case. After the meeting, the data controller was given a deadline to submit a memorandum. Subsequently, the data controller submitted the memorandum with reference number G/EIS/9196/28-12-2023, in which it essentially reiterated the claims previously made before the Authority. Specifically, the memorandum states that the delayed response was due to technical problems with the website where the questionnaire was available, resulting in an inability to connect to it despite repeated attempts.

The Authority, after examining the elements of the file and what emerged from the hearing before it and the memorandum of the data controller, along with its supplementary documents, having heard the rapporteur and the clarifications from the assistant rapporteurs, who attended without voting rights, after thorough discussion,

****CONSIDERED IN ACCORDANCE WITH THE LAW****

1. Since, from the provisions of Articles 51 and 55 of the GDPR and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data and to exercise the powers assigned to it under the aforementioned regulation.

2. Since according to the definitions of Article 58 GDPR: "1. Each supervisory authority has all of the following investigative powers: a) to order the data controller and the processor and, where applicable, the representative of the data controller or the processor to provide any information it requires for the performance of its tasks, b) to conduct investigations in the form of audits for the protection of data,... d) to notify the data controller or the processor of an alleged infringement of this regulation, e) to obtain from the data controller and the processor access to all personal data and all information necessary for the performance of its tasks..."

3. Since furthermore, according to the definitions of Articles 13 and 15 of Law 4624/2019 respectively: "1. In addition to its duties under Article 57 of the GDPR, the Authority: ...h) conducts investigations or audits ex officio or upon complaint for the application of this law and other regulations concerning the protection of individuals against the processing of personal data, among other things based on information from another public authority..." and "1. In addition to the powers provided for in Article 58 of the GDPR, the Authority conducts investigations and audits ex officio or upon complaint regarding compliance with this law, within the framework of which the technological infrastructure and other automated or non-automated means supporting the processing of personal data are examined. During the conduct of investigations and audits, the Authority has the power to obtain from the data controller and the processor access to all personal data that is subject to processing and all information necessary for the purposes of the relevant audit and the performance of its tasks, without any kind of confidentiality being able to be invoked against it..."

4. Since according to the definitions of Article 31 of the GDPR: "The data controller and the processor, and where applicable, their representatives cooperate, upon request, with the supervisory authority for the exercise of its tasks."

5. Since according to the definitions of Article 37 of the GDPR: "1. The data controller and the processor shall designate a data protection officer in every case where: a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity,... 3. If the data controller or the processor is a public authority or public body, a single data protection officer may be designated for several such authorities or bodies, taking into account their organizational structure and size...5. The data protection officer is appointed on the basis of professional qualifications and, in particular, on the basis of the expertise they possess in the field of data protection..."

****Field of Law and Data Protection Practices****

Based on the ability to fulfill the duties referred to in Article 39.

6. The Data Protection Officer may be a member of the staff of the data controller or the processor or may perform their duties under a service contract.

7. The data controller or the processor shall publish the contact details of the Data Protection Officer and communicate them to the supervisory authority.

****6.**** Since according to the definitions of Article 38 of the GDPR:

1. The data controller and the processor ensure that the Data Protection Officer is involved, properly and in a timely manner, in all issues related to the protection of personal data.

2. The data controller and the processor support the Data Protection Officer in carrying out the duties referred to in Article 39 by providing the necessary resources for the performance of those duties and access to personal data and processing operations, as well as resources necessary to maintain their expertise.

3. The data controller and the processor ensure that the Data Protection Officer does not receive instructions regarding the performance of those duties. They are not dismissed or subjected to penalties by the data controller or the processor for performing their duties. The Data Protection Officer reports directly to the highest management level of the data controller or the processor.

4. Data subjects may contact the Data Protection Officer for any issues related to the processing of their personal data and the exercise of their rights under this regulation.

5. The Data Protection Officer is bound by the obligation of confidentiality regarding the performance of their duties, in accordance with Union or Member State law.

6. The Data Protection Officer may also perform other tasks and obligations. The data controller or the processor ensure that these tasks and obligations do not lead to a conflict of interest.

****7.**** Since according to the definitions of Article 39 of the GDPR:

1. The Data Protection Officer has at least the following tasks:

a) to inform and advise the data controller or the processor and the employees who process their obligations arising from this regulation and from other provisions of Union or Member State law regarding data protection,

b) to monitor compliance with this regulation, with other provisions of Union or Member State law regarding data protection, and with the policies of the data controller or the processor regarding the protection of personal data, including the assignment of responsibilities, awareness-raising and training of staff involved in processing operations, and related audits,

c) to provide advice, when requested, regarding the data protection impact assessment and to monitor its implementation in accordance with Article 35,

d) to cooperate with the supervisory authority,

e) to act as a contact point for the supervisory authority on issues related to processing, including prior consultation referred to in Article 36, and to consult, as appropriate, on any other matter.

2. In the performance of their duties, the Data Protection Officer takes due account of the risks associated with processing operations, considering the nature, scope, context, and purposes of the processing.

****8.**** In this case, from the elements of the case file, it appears that the data controller did not timely submit the above questionnaire. The claim regarding technical issues of the link that prevented the submission of the questionnaire is unfounded, as the link was functional and was deactivated only after the deadline for submitting the questionnaire had expired. Subsequently, it was reactivated to allow the data controller to submit the questionnaire again, without any response.

****9.**** Therefore, based on the above, the Authority finds that the Municipality of Athens has violated Article 31 regarding the cooperation of the data controller with the Authority.

10. Based on the above, the Authority finds that there is a case for exercising its corrective powers under Article 58(2) of the GDPR and imposing an administrative sanction in relation to the established violation.

11. The Authority further finds that, based on the established violation, an effective, proportionate, and

deterrent administrative monetary fine should be imposed, in accordance with the provision of Article 58(2)(h) of the GDPR, pursuant to Articles 83 of the GDPR and 39 of Law 4624/2019, on the data controller.

12. Furthermore, the Authority took into account the criteria for assessing the fine as set out in Article 83(2) of the GDPR, the paragraphs 4 and 5 of the same article applicable to the present case, Article 39(1) and (2) of Law 4624 concerning the imposition of administrative sanctions on public sector entities, and the Guidelines 04/2022 of the European Data Protection Board for the calculation of administrative fines under the GDPR, which were approved on 24/5/2023, as well as the factual data of the examined case, and in particular the following:

- i) The data controller demonstrated difficulty in cooperating with the Authority, failing to provide the requested information in a timely manner, although it was provided after consultation with the DPO and a subsequent deadline for submitting the questionnaire after the initial deadline had lapsed without result.
- ii) The "negligence" exhibited by the data controller, as, although there was no intention to commit the violation, it breached the duty of care required by law.
- iii) There is no material harm to the data subjects.
- iv) The fact that no previous similar violation has been established against the data controller.
- v) The fact that, although late, the data controller submitted the above questionnaire following its summons to the Plenary.

13. The Authority finds that, based on the established violation, the sanction referred to in the operative part of the decision is the effective, proportionate, and deterrent measure both for restoring compliance and for punishing the unlawful behavior.

FOR THESE REASONS

The Authority, taking into account the above:

Imposes, based on Article 58(2)(h) of the GDPR, an administrative fine on the Municipality of Athens in the total amount of €5,000 for the violation of Article 31 of Regulation (EU) 2016/679.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou